

amendable. *Vide* 14 Hen. 4. 10, 11. (l) 27 Hen. 6. 6 b. 11 Hen. 6. 14. 34 Hen. 6. 26. 28 Hen. 6. 11. and upon this reason it has been often adjudged since this statute of (a) 8 Hen. 6. that false Latin † in an original writ shall not be amended, because it wants legal form, and is to be imputed to the ignorance of the clerk, 9 Hen. 7. 16 b. as (b) *hos breve*, for *hoc breve*: and the common law is curious in observing the form of the register, and therefore it is adjudged in 6 Edw. 3. 36 b. 37 a. that where a trespass done by divers is joint or several, at the will of the plaintiff, yet in an action against John, Guardian of the Hospital of B. and brother Rob. L. and brother Rich. F. inasmuch as this default of the clerk for want of form, that these brethren are not named Confrerers, as it ought to be by the form of the register, the writ shall abate against all, although the guardian be well named. But in trespass against two, misnomer of one of the defendants shall not abate the whole writ, but it shall stand against the other who is well named; for there Herle took the difference, when the writ abates by the plea of the one for want of form, although the others have pleaded to issue, the writ shall abate against all; † but although one may abate the writ for matter in fact, as by reason of the misprision of his name, nevertheless the writ shall stand against the others. *Vide* 2 H. 7. 16. 11 H. 7. 5. 6. 21 H. 7. 31. 7 E. 4. 10. 5 E. 4. 2. 11 Ass. 15. 12 Ass. p. 14. 27 Ass. p. 45. 9 Hen. 6. 36. 12 E. 3. Brief 670. 12 E. 3. Brief 481. 27 H. 8. 26. 5 Plow. Com. in Assise of Fresh Force.

But as to the second manner of misprision in negligent writing of a word which is not a Latin word, that is amendable, as (c) *imaginavit*, for *imaginatus est*, it shall be amended, as it is adjudged in 11 Hen. 6. 3. 17. So was it adjudged in 3 Edw. 6. as Bendloes, Serjeant, reports, that where in a writ of *aiel* the writ was *axe*, (d) for *aria*, it was amended (D).

[160 a] As to the third manner of misprision in negligent omission or addition of a thing which it appears he himself ought to have added, or omitted of course; as by the omission of *Dei Gratia* in the King's stile, it shall be amended. 22 Hen. 6. 8. So 3 Ed. 6. as Bendloes, Serjeant, reports, these words in a *partitione faciend'* (e) (*ostensur quare non feceret*) were left out, and it was amended. *Vide* 35 H. 6. 6. 10 a. 2 Hen. 7. 11 b. 9 Hen. 7. 19. for addition of that which is apparent ought to be omitted. But the (f) omission or addition of any thing which alters the form of the writ is not amendable, as the addition or omission of (g) *delinet*, as appears in 11 H. 6. 14 a. b. or the addition of *debet*, as appears in 22 E. 4. 21 b. 22 a.

As to the fourth manner of misprision, *sc.* of the record or specialty, &c. *Vide* 21 H. 6. 8. 22 H. 6. 43. 37 H. 6. 34. 19 H. 6. Amendment 47. 8 E. 4. 4.

As to the fifth manner of misprision, in negligence of a clerk or officer, not in writing, &c. but in negligent keeping of the records, or in voluntary defacing of them, whereby the record becomes imperfect or erroneous, in Trin. 24 Eliz. the case was that Henry Fitz-Allen, late Earl of (a) Arundel, in the reign of Queen Mary suffered a common recovery of divers manors, and of lands and tenements in the county of Sussex; and the original writ upon the recovery was had, being greater and broader than the other writs of the same file, by the negligence of the officer by continual handling of it, a great part of this writ, which was more spacious than the rest, was

(l) Fitz. Amend. 35. Br. Amend. 6. Br. Brief. 519. *Postea* 161 b.

(a) 8 H. 6. c. 12.

† 1 Lev. 2, &c. *ib.*

(b) Br. Faux Latin 78. 2 Vent. 173. 2 Sand. 39. Hob. 66.

† Com. Dig. Abate. N. 6 Co. 64 b.

(c) 2 Vent. 173. Fitz. Amend. 24. Br. Amendment 81.

(d) 5 Co. 45 b. Moor 5. 1 And. 24. N. Benl. 33. pl. 53. 1 Lev. 2. seems *contra*, per Twisden and Windham, J.

(D) *Vid.* stat. 4 Geo. 2. cap. 26. that proceedings in Courts of Justice shall be in the English tongue.

(e) 5 Co. 45 b. Moor 5. 1 And. 24. Dal. 5. pl. 9. N. Benl. 33. pl. 53.

(f) Cr. El. 119.

(g) 5 Co. 35 b.

(a) 1 And. 79, 80.